

	25-1506621	Mr. Keefe has complied with the requirements set forth in <i>California Rules of Court, Rule 9.40</i>. Accordingly, the application is GRANTED. <i>Mr. Keefe is ordered to give notice of this ruling.</i>
3.	Kolaar v. FCA US LLC 25-1493558	The motion for terminating sanctions filed by defendants FCA US LLC and Huntington Beach Chrysler Dodge Jeep Ram (collectively, Defendants) against plaintiff Aaron Van Korlaar (Plaintiff) is DENIED WITHOUT PREJUDICE. The proof of service for this motion lists an incorrect email address for Plaintiff's counsel. The email address for Plaintiff's counsel listed in the proof of service contains a misspelling and omits the number 4 from the email address. (See ROA 10, 41.) There is no opposition filed. It is thus unclear if Plaintiff received proper notice of this motion. Based on the foregoing, the motion is DENIED WITHOUT PREJUDICE. <i>Counsel for Defendant shall give notice.</i>
4.	Jergensen v. NAHS Holding, Inc. 24-1411114	<i>(Sorry, still pending)</i>
5.	Li v. Li 25-1517999	<i>(Sorry, still pending)</i>
6.	Potter v. Gustafson 26-1554580	<i>(Continued)</i>
7.	Mkhitarian v. Mustafiz 25-1475287	Before the Court is a demurrer by defendant Tanim Mustafiz (Defendant) on the Second Amended Complaint (SAC) of plaintiff Albert Mkhitarian (Plaintiff). For the reasons set forth below, the demurrer is SUSTAINED as to the 1st cause of action without leave to amend. Defendant shall file his answer, if any, within 10 days. Plaintiff failed to cure the defect in the prior pleading. In the SAC, Plaintiff alleges Defendant was an equal shareholder of TestJet with Plaintiff, and adds that Defendant "was also an officer and director of TestJet, and, by reason of such, owed fiduciary duties to Plaintiff." (SAC ¶ 21.) These facts are still insufficient to establish the existence of a fiduciary relationship giving rise to breach of fiduciary duty. (<i>City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith</i> (1998) 68 Cal. App. 4th 445, 483 [elements].) Corporate officers and directors stand in a fiduciary relation to both the corporation and its stockholders. (<i>Bancroft-Whitney Co. v. Glen</i> (1966) 64 Cal.2d 327, 345.) There is a "strong public interest in assuring that corporate officers, directors, majority shareholders and others are faithful to their fiduciary obligations to minority shareholders." (<i>Meister v. Mensinger</i> (2014) 230 Cal.App.4th 381, 395 [emphasis added], citing <i>Steinberg v. Amplica, Inc.</i> (1986) 42 Cal.3d 1198, 1210; see e.g., <i>Persson v. Smart Inventions, Inc.</i> (2005) 125 Cal.App.4th 1141,